

SENATE No. 2673

Senate, November 6, 2025 -- Text of the Senate amendment (Senator Oliveira) to the House Bill authorizing the city known as the town of Palmer to grant additional licenses for the sale of all alcoholic beverages (House, No. 4282).

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

1 SECTION 1. (a) Notwithstanding section 17 of chapter 138 of the General Laws, the
2 licensing authority of the city known as the town of Palmer may grant 5 additional licenses for
3 the sale of all alcoholic beverages as follows: (i) 1 license for the sale of all alcoholic beverages
4 to be drunk on the premises pursuant to section 12 of said chapter 138 to Tables at the Farm
5 located at 3092 Palmer street in the city; (ii) 1 license for the sale of all alcoholic beverages to be
6 drunk on the premises pursuant to said section 12 of said chapter 138 to Panther Dev Palmer,
7 LLC located at 1519 North Main street in the city; (iii) 1 license for the sale of all alcoholic
8 beverages to be drunk on the premises pursuant to said section 12 of said chapter 138 to
9 Ernestina's LLC located at 2054 Bridge street in the city; (iv) 1 license for the sale of all
10 alcoholic beverages not to be drunk on the premises pursuant to section 15 of said chapter 138 to
11 Luke's Beer and Wine located at 1478 North Main street in the city; and (v) 1 license for the sale
12 of all alcoholic beverages not to be drunk on the premises pursuant to said section 15 of said
13 chapter 138 to Jane Alden Convenience Store located at 1469 North Main street in the city. The
14 licenses granted under this section shall be subject to all of said chapter 138 except said section
15 17.

(b) A license granted under clauses (i) to (iii), inclusive, of subsection (a) shall only be exercised in the dining room of a common victualler and other public rooms or areas considered reasonable and appropriate by the licensing authority as certified in writing.

(c) The licensing authority shall not approve the transfer of a license granted pursuant to this section to any other location, but it may grant the license to a new applicant at the same location if the applicant files with the licensing authority a letter from the department of revenue and a letter from the department of unemployment assistance indicating that the license is in good standing with those departments and that all applicable taxes, fees and contributions have been paid.

(d) If a licensee terminates or fails to renew a license granted under this section or any such license is cancelled, revoked or no longer in use, it shall be returned physically, with all legal rights, privileges and restrictions pertaining thereto, to the licensing authority and the licensing authority may, within 3 years after such return, then grant the license to a new applicant at the same location under the same conditions as specified in this section, otherwise such license shall dissolve.

(e) A license granted under this section shall be issued within 1 year after the effective date of this act; provided, however, that a license originally granted within that time period may be granted to a new applicant under subsections (c) and (d) thereafter.

SECTION 2. Upon issuance of the license authorized in clauses (iv) and (v) of subsection (a) of section 1, the licensee shall return physically, with all of the legal rights, privileges and restrictions pertaining thereto, to the licensing authority its license for the sale of wine and malt beverages not to be drunk on the premises under section 15 of chapter 138 of the General Laws.

SECTION 3. This act shall take effect upon its passage.